PETITION TO PROBATE WILL IN SOLEMN FORM

INSTRUCTIONS

I. Specific Instructions

1. This form is to be used when filing a petition to probate will in solemn form pursuant to O.C.G.A. § 53-5-20 et seq.

2. It is permissible, but not mandatory, to use this form in connection with a petition to probate a copy of a will in lieu of a lost original pursuant to O.C.G.A. § 53-4-46, provided that appropriate interlineations are made, and additional information is given to overcome the presumption of revocation.

3. Signatures of heirs who acknowledge service must be sworn to before a notary public or the clerk of any probate court of this State. It is not necessary that all acknowledgments appear on the same page. An attorney at law may acknowledge service on behalf of an heir; however, the attorney must certify that he or she currently represents that heir with regard to the pending matter and, in order to comply with O.C.G.A. § 53-11-6, the attorney's signature must be sworn to as provided above. With regard to a power of attorney, the attorney-in-fact may acknowledge service on behalf of the grantor of the power, provided that the power of attorney grants such authority, the signature of the attorney-in-fact is attested, a copy of the power of attorney is attached, and the attorney-in-fact certifies that the copy is a true copy and is still in effect.

4. O.C.G.A. § 53-11-2 provides that a party to a probate proceeding who is not sui juris must be represented by a guardian provided that the Court may appoint a guardian ad litem or determine that the natural guardian, guardian, conservator, or testamentary guardian has no conflict and may serve. If a guardian ad litem is necessary because a party is not sui juris, use GPCSF Supplement 1.

5. O.C.G.A. § 53-5-22 (c) provides that service of notice, when made personally or by mail, shall include a copy of the petition and of the will (and codicil(s)) for which probate is sought. The same is true when service is acknowledged. This form may, but is not required to, be used where service by registered or certified mail with return receipt requested, restricted delivery, is requested by the petitioner(s) in lieu of personal service, in accordance with O.C.G.A § 53-11-3 (e). Make appropriate changes in the order for notice, notice and certificate of service. If petitioner(s) request(s) personal service by registered, certified, or statutory overnight delivery with return receipt requested and with delivery restricted to the addressee only and that service is unsuccessful, service must be made pursuant to O.C.G.A. § 53-11-3 (a).

6. Paragraph 4 of this petition requires sufficient factual information for the Court to conclude that those listed in paragraph 3 of this petition include each and every heir of the decedent and that there are not additional heirs of the same or closer degree according to O.C.G.A. § 53-2-1. These facts must allow the Court to rule out the possibility that there may be other heirs of the same or closer degree who have not been listed. Provide the date of death of any deceased heirs and the name of the deceased heir's personal representative, if applicable. The personal representative of a post deceased heir is authorized to consent on behalf of that heir. O.C.G.A. § 53-7-1. When a party to a proceeding in probate court is a post deceased heir whose estate has no personal representative, such deceased heir's estate may be represented in the

proceeding by a guardian ad litem. A person's heirs are determined at the time of that person's death. A close relative must be alive at the time the decedent dies to be an heir. If an heir who outlived the decedent subsequently dies, that post deceased heir must be represented by the personal representative of his or her estate or by a guardian ad litem. *[If you are uncertain how to determine the heirs of a decedent, refer to the "Heirs Determination Worksheet" available from the probate court or at www.gaprobate.gov.]* Examples of such statements would be: (a) "Decedent was or was not married at the time of his death and had no children born, adopted, living, or deceased, other than listed herein"; (b) "Decedent had no other siblings half or whole other than those listed herein"; and (c) "Decedent's brother who died previously had no other children born, adopted, living, or deceased, other than listed herein."

7. For paragraph 6 of the petition, if there is a testamentary conservator named in the will according to O.C.G.A. § 29-3-5 and the decedent died leaving minor children, then the consent to serve should be completed. When a testamentary guardian is to be appointed, GPCSF Supplement 5 (Testamentary Guardianship) should be included with this petition, and the petitioner(s) must provide full names and addresses for the minor children's adult siblings and grandparents. If there are no living adult siblings or grandparents, the petitioner(s) must provide full names and addresses for the minor children's great-grandparents, aunts, uncles, great-aunts, or great-uncles, if any such relatives exist. If the minor children shared the same parents, the petitioner(s) may complete one GPCSF Supplement 5 for such similarly situated children. If the minor children did not share the same parents, a separate GPCSF Supplement 5 must be filed for each minor. Contact the probate court in which the petition will be filed for its policy as to the filing of GPCSF Supplement 5 when there are multiple children.

8. Use GPCSF Supplement 2 if the Court determines it is appropriate to appoint a special process server.

9. Use GPCSF Supplement 3 when an additional certificate of service is necessary.

10. Exhibits should be labeled at the bottom of each exhibit as "Exhibit A," "Exhibit B," etc. in consecutive order. The corresponding letter of each said exhibit should be inserted into the appropriate place in the form.

11. An oath must be administered by a probate judge or clerk (the oath cannot be administered by a notary public). Use GPCSF Supplement 4 for the oath. The oath is not included in this form. GPCSF 53, Commission to Administer Oath, can be used if the oath is to be administered by a court outside the State of Georgia.

12. According to Uniform Probate Court Rule 5.6 (A), unless the Court specifically assumes the responsibility, it is the responsibility of the moving party to prepare the proper citation and deliver it properly so it can be served according to law. All pages after the notice regarding Uniform Probate Court Rule 5.6 (A) are to be completed by the moving party, unless otherwise directed by the Court.

II. General Instructions

General instructions applicable to all Georgia Probate Court Standard Forms are available in each probate court or at www.gaprobate.gov, labeled GPCSF 1.

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	**)**	
	)	
_____,	**)**	**ESTATE NO. _____**
DECEASED	**)**	

PETITION TO PROBATE WILL IN SOLEMN FORM

The petition of _____
[Full name(s) of petitioner(s)] First Middle Last
whose physical address(es) is/are _____,
Street City County State Zip Code
and mailing address(es) is/are _____,
Street City County State Zip Code
shows to the Court the following:

1.

_____,
[Full name of decedent] First Middle Last

whose place of domicile was _____,
Street City County State Zip Code
departed this life on _____, 20____.

2.

While alive, decedent duly made and published a last will and testament dated _____, (along with codicil(s) dated _____), which is herewith offered for probate in solemn form as the decedent's "will." _____ is/are named as the executor(s).

3.

Listed below are all of the decedent's heirs at law, with age or majority status, address and relationship to the decedent set opposite the name of each:

Name	*Age (or over 18)*	*Address*	*Relationship*

4.

Required: *[Provide sufficient factual information to enable the Court to conclude that all of the heirs of the decedent are included and that there are no heirs of the same or closer degree according to O.C.G.A. § 53-2-1. Provide the names of any deceased heirs, the name and address of his or her personal representative, if any, and include the date of death for each (see instructions for further clarification). Also, state here all pertinent facts that may govern the method of giving notice to any person and that may determine whether or not a guardian ad litem should be appointed for any person. If any heirs listed above are cousins, grandchildren, nephews, or nieces of the decedent, indicate the deceased ancestor through whom they are related to the decedent. If any executor nominated in the Will has a priority equal to or higher than the propounder but will not qualify, indicate the name and reasons.]*

_____

_____

_____

_____

_____

_____

5.

[Initial one]

_____ (a) To the knowledge of the petitioner(s), no other proceedings with respect to this estate are pending, or have been completed, in any other probate court in this State or any other state.

_____ (b) The probate of another purported will of the decedent is pending in the State of _____, in the _____ County _____ Court. The name(s) and address(es) of the propounder(s) and the names, addresses, and ages or majority status of the beneficiaries under the other purported will to whom notice is required under O.C.G.A. § 53-5-22 (b) are listed on the attachment hereto, as "Exhibit ____," which is expressly made a part hereof, as if fully set forth herein.

_____ (c) An administration is pending in the State of _____, in the _____ County _____ Court. The name(s) and address(es) of each petitioner and the name(s) and address(es) of any appointed administrator(s), if any, are listed on the attachment hereto, as "Exhibit ____," which is expressly made a part hereof, as if fully set forth herein.

6.

[Initial all that apply; however, please note that this form may not be appropriate if the petitioner(s) is/are seeking the appointment of a testamentary guardian, which requires notice to the relatives of the decedent's minor child(ren) pursuant to O.C.G.A. § 29-2-4.]

At the time of the decedent's death, and at this time, the decedent left (a) minor child(ren) and the will names a testamentary conservator.

_____ (a) The will names a testamentary conservator of (a) minor child(ren) of the decedent. At the time of the decedent's death, he/she had (a) minor child(ren) and there is/are no court-appointed conservator(s); the following individual(s) is/are named as testamentary conservator(s) in the decedent's will:

Name Address

_____

_____

_____ (b) The will names a testamentary conservator of (a) minor child(ren) of the decedent. At the time of the decedent's death, he/she had (a) minor child(ren) and there is/are a court-appointed conservator(s), who is/are identified as follows: *[If named, testamentary conservator(s) and court-appointed conservator(s) are different.]*

Name Address

_____

_____

7.

Additional data: *[Where full particulars are lacking, state here the reasons for any such omission.]*

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

WHEREFORE, petitioner(s) pray(s):

1. Leave to prove said will (and codicil(s)) in solemn form;
2. That due and legal notice be given as the law requires;
3. That said will be admitted to record on proper proof;
4. That letters of testamentary conservatorship issue, if applicable;
5. That letters testamentary issue; and
6. That this Court order such other relief as may be proper under the circumstances.

_____
Signature of Petitioner

_____
Printed Name

_____

_____
Mailing Address

_____
Telephone Number

Signature of Attorney: _____

Printed Name of Attorney: _____

Address: _____

_____

Telephone Number: _____ State Bar #_____

VERIFICATION

GEORGIA, _____ COUNTY

Personally appeared before me the undersigned petitioner(s) who, after being duly sworn, state(s) that the facts set forth in the foregoing petition to probate will in solemn form (and the attached exhibit(s)) are true and correct.

Sworn to and subscribed before me this
_____ day of _____, 20_____

_____
Signature of Petitioner

_____
NOTARY/CLERK OF PROBATE COURT

_____
Printed Name of Petitioner

My Commission Expires: _____

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	)	
	)	
_____,	)	**ESTATE NO. _____**
DECEASED	)	

ACKNOWLEDGMENT OF SERVICE AND ASSENT TO PROBATE INSTANTER

The undersigned, being 18 years of age or older, laboring under no legal disability, and being an heir of the above-named decedent, hereby acknowledges service of a copy of petition to probate the will in solemn form, purported will, and notice, waives copies of same; waives further service and notice; and hereby assents to the probate of said will in solemn form instanter.

Sworn to and subscribed before me this
_____ day of _____, 20_____ _____
Signature of Heir

_____ _____
NOTARY/CLERK OF PROBATE COURT Printed Name of Heir

My Commission Expires: _____

Sworn to and subscribed before me this
_____ day of _____, 20_____ _____
Signature of Heir

_____ _____
NOTARY/CLERK OF PROBATE COURT Printed Name of Heir

My Commission Expires: _____

Sworn to and subscribed before me this
_____ day of _____, 20_____ _____
Signature of Heir

_____ _____
NOTARY/CLERK OF PROBATE COURT Printed Name of Heir

My Commission Expires: _____

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	)	
	)	
_____,	)	**ESTATE NO. _____**
DECEASED	)	

TESTAMENTARY CONSERVATOR'S
CONSENT TO SERVE

[To be completed only in the event a testamentary conservator is named in the will]

The undersigned, being 18 years of age or older, laboring under no legal disability, and being named as testamentary conservator, hereby consents to serve. I understand that once appointed, I will have the same rights, powers, and duties as set forth in O.C.G.A. § 29-3-5.

Sworn to and subscribed before me this
_____ day of _____, 20_____

_____
Signature of Testamentary Conservator

_____
NOTARY/CLERK OF PROBATE COURT

_____
Printed Name of Testamentary Conservator

My Commission Expires: _____

Sworn to and subscribed before me this
_____ day of _____, 20_____

_____
Signature of Testamentary Conservator

_____
NOTARY/CLERK OF PROBATE COURT

_____
Printed Name of Testamentary Conservator

My Commission Expires: _____

NOTICE

THE FOLLOWING PAGES ARE TO BE COMPLETED BY THE PETITIONER (MOVING PARTY) UNLESS OTHERWISE DIRECTED BY THE COURT.

SEE UNIFORM PROBATE COURT RULE 5.6 (A).

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	**)**	
	)	
_____,	**)**	**ESTATE NO. _____**
DECEASED	**)**	

ORDER FOR SERVICE OF NOTICE

The foregoing petition to probate will (and codicil(s)) in solemn form having been filed, service is ordered as follows:

[Initial all that apply]

_____ Notice together with a copy of the petition and purported will (and codicil(s)) shall be served personally, or by registered or certified mail or statutory overnight delivery, as requested by the petitioner(s) pursuant to O.C.G.A. § 53-11-3, at least 30 days before the Will (and codicil(s)) can be probated on the following heirs who reside in Georgia: *[If mailed, must be with return receipt requested, and restricted delivery to addressee only.]*

_____

_____

_____

_____ Notice together with a copy of the petition and purported will (and codicil(s)) shall be served by registered or certified mail, return receipt requested, pursuant to O.C.G.A. § 53-11-4, upon the following nonresident heirs whose current residence addresses are known:

_____

_____

_____

_____ Notice shall be published once a week for four weeks in the legal organ of this County, before _____, 20____, in order to serve by publication the following heirs whose current residence addresses are unknown:

_____

_____

_____

SO ORDERED this _____ day of _____, 20___.

_____
Judge of the Probate Court

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	**)**	
	)	
_____,	**)**	**ESTATE NO. _____**
DECEASED	**)**	

NOTICE

IN RE: The Petition to Probate Will (and Codicil(s)) in Solemn Form in the above-referenced estate

[Strike any paragraph if not applicable]

TO: _____

[List here all interested parties who reside in Georgia to be served personally or by registered or certified mail or statutory overnight delivery with restricted delivery to the addressee, if specifically requested by the petitioner(s)]

This is to notify you who are required to be served personally, to file objection, if there is any, to the petition to probate will in solemn form, in this Court on or before the 30th day after the date you are personally served or sign the return receipt.

TO: _____

[List here all heirs having known addresses outside the continental U.S. to be served by registered or certified mail or statutory overnight delivery with restricted delivery to the addressee, if specifically requested by the petitioner(s)]

This is to notify you to file objection, if there is any, to the petition to probate will in solemn form, in this Court on or before the 30th day after _____, 20_____ (the date of the mailing of this notice to you by certified or registered mail, return receipt requested); provided, however, that if a return receipt for such notice is actually received by the Court within such 30 days, the deadline for the filing of any objection shall be 30 days from the date of receipt shown on such return receipt.

TO: _____

[List here all heirs having known addresses in the continental U.S. to be served by registered or certified or statutory overnight delivery with restricted delivery to the addressee, if specifically requested by the petitioner(s)]

This is to notify you to file objection, if there is any, to the petition to probate will in solemn form, in this Court on or before the 30th day after _____, 20_____ (the date of the mailing of this notice to you by certified or registered mail, return receipt requested); provided, however, that if a return receipt for such notice is actually received by the Court within such 30 days, the deadline for the filing of any objection shall be 30 days from the date of receipt shown on such return receipt.

BE NOTIFIED FURTHER: All objections to the petition must be in writing, setting forth the grounds of any such objections. All objections should be sworn to before a notary public or before a probate court clerk, and filing fees must be tendered with your objections, unless you qualify to file as an indigent party. Contact probate court personnel for the required amount of filing fees. If any objections are filed, a hearing will be (held on _____, 20_____) (scheduled at a later date). If no objections are filed, the petition may be granted without a hearing.

_____
Judge of the Probate Court

By: _____
Clerk of the Probate Court

_____

_____
Address

_____
Telephone Number

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	)	
	)	
_____,	)	**ESTATE NO. _____**
DECEASED	)	

NOTICE

IN RE: The Petition to Probate Will (and Codicil(s)) in Solemn Form in the above-referenced estate having been duly filed.

[For use if an heir is required to be served by publication]

TO: _____
[List here all heirs having unknown addresses to be served by publication]

This is to notify you to file objection, if there is any, to the petition to probate will in solemn form, in this Court on or before _____, 20_____.

BE NOTIFIED FURTHER: All objections to the petition must be in writing, setting forth the grounds of any such objections. All objections should be sworn to before a notary public or before a probate court clerk, and filing fees must be tendered with your objections, unless you qualify to file as an indigent party. Contact probate court personnel for the required amount of filing fees. If any objections are filed, a hearing will be (held on _____, 20_____)(scheduled at a later date). If no objections are filed, the petition may be granted without a hearing.

_____
Judge of the Probate Court

By: _____
Clerk of the Probate Court

_____

_____
Address

_____
Telephone Number

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	**)**	
	)	
_____,	**)**	**ESTATE NO. _____**
DECEASED	**)**	

CERTIFICATE OF SERVICE

I certify that I have this date mailed (unless otherwise noted), in an envelope with the proper postage affixed thereto for First-Class Mail delivery copies of the _____
_____
_____
_____
_____ to the following parties at the addresses below:

This _____ day of _____, 20____.

_____
Clerk of the Probate Court

_____

_____
Address

_____
Telephone Number

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	**)**	
	)	
_____,	**)**	**ESTATE NO. _____**
DECEASED	**)**	

ORDER ADMITTING WILL (AND CODICIL(S)) TO PROBATE IN SOLEMN FORM

An alleged last will and testament dated _____ (and codicil(s) dated _____) was/were propounded.

_____ was/were nominated personal representative(s) by the testator. The Court finds that the decedent died domiciled within, or domiciled outside the State of Georgia but owning property within, the above county. The Court further finds that all of the heirs at law were served or acknowledged service. The Court further finds that no objection has been filed, and all requirements of law have been fulfilled. The Court further finds that the propounded will (is self-proving)(has been proved by one or more witnesses).

ACCORDINGLY, IT IS ORDERED that the will dated _____ (and the codicil(s) dated _____) is/are established as the last will and testament of the decedent ("the dDecedent's will"); that the will be admitted to record as proven in solemn form; and, that the nominated executor(s) named above has/have leave to qualify as personal representative(s) by taking the required oath, after which letters testamentary shall issue. The clerk shall serve the personal representative(s) with copies of this order and the letters upon qualification.

IT IS FURTHER ORDERED that the personal representative(s) shall disburse all property according to the terms of the decedent's will and shall maintain all records of income and disbursements until discharged by order of this Court.

IT IS FURTHER ORDERED that:

[Initial all that apply]

_____ (a) An inventory shall be filed.
_____ (b) Annual returns shall be filed.
_____ (c) Letters of testamentary conservatorship shall issue to
_____.

_____ (d) Letters of testamentary guardianship shall issue to
_____.

SO ORDERED this _____ day of _____, 20____.

_____
Judge of the Probate Court

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	**)**	
	)	
_____,	**)**	**ESTATE NO. _____**
DECEASED	**)**	

LETTERS TESTAMENTARY
[Relieved of filing returns]

At a regular term of probate court, the last will and testament dated _____ (and codicil(s) dated _____) of the above-named decedent, who was domiciled in this county at the time of his or her death or was domiciled in another state but owned property in this county at the time of his or her death, was legally proven in solemn form to be the decedent's will and was admitted to record by order, and it was further ordered that _____, named as executor(s) in said will, be allowed to qualify, and that upon so doing, letters testamentary be issued to such executor(s).

THEREFORE, the executor(s), having taken the oath of office and complied with all necessary prerequisites of the law, is/are legally authorized to discharge all the duties and exercise all powers of executor(s) under the will of said decedent, according to the decedent's will and the law.

Given under my hand and official seal, the _____ day of _____, 20____.

_____
Judge of the Probate Court

The following must be signed if the judge does not sign the original of this document:

Issued by: *[Seal]*

_____
Clerk of the Probate Court

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	**)**	
	)	
_____,	**)**	**ESTATE NO. _____**
DECEASED	**)**	

LETTERS TESTAMENTARY
[Not relieved of filing returns]

At a regular term of probate court, the last will and testament dated _____ (and codicil(s) dated _____) of the above-named decedent, who was domiciled in this county at the time of his or her death or was domiciled in another state but owned property in this county at the time of his or her death, was legally proven in solemn form to be the decedent's will and was admitted to record by order, and it was further ordered that _____, named as executor(s) in said will, be allowed to qualify, and that upon so doing, letters testamentary be issued to such executor(s).

THEREFORE, the executor(s), having taken the oath of office and complied with all necessary prerequisites of the law, is/are legally authorized to discharge all the duties and exercise all powers of executor(s) under the will of said decedent, according to the decedent's will and the law and is/are hereby required to render a true and correct inventory of all property, both real and personal, and any and all debts of the estate, and make a return of them to this Court, and further, to file a proper annual return or final return with this Court each year within 60 days of the anniversary date of appointment until the executorship is fully discharged.

Given under my hand and official seal, the _____ day of _____, 20____.

_____
Judge of the Probate Court

The following must be signed if the judge does not sign the original of this document:

Issued by: *[Seal]*

_____
Clerk of the Probate Court

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	**)**	
	)	
_____,	**)**	**ESTATE NO. _____**
DECEASED	**)**	

LETTERS OF TESTAMENTARY CONSERVATORSHIP OF MINOR

[To be completed only in the event a testamentary conservator is named in the will]

TO: _____, Testamentary Conservator(s)

RE: _____, Minor

_____, Minor's Date of Birth

Pursuant to the last will and testament (and codicil(s)), of the above-named decedent, you have been appointed testamentary conservator(s) of the property of the minor named directly above. You have assented to this appointment by taking your oath. In general, your duties as testamentary conservator(s) are to protect and maintain the property of the minor and utilize the minor's property solely for the benefit of the minor. Consult your attorney if you have any questions.

These letters of testamentary conservatorship empower the above testamentary conservator(s) to hold, for the minor, only property that passed through the estate of the above-named decedent.

Given under my hand and official seal, the _____ day of _____, 20____.

_____
Judge of the Probate Court

The following must be signed if the judge does not sign the original of this document:

Issued by: *[Seal]*

_____
Clerk of the Probate Court